

24NWCV01302 24NWCV01302

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-08-27

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Case Number: 24NWCV01302 Hearing Date: August 27, 2026 Dept: L

I.

Defendant County of Los Angeles' Motion

to Deem Requests for Admission, Set One, Admitted is DENIED as MOOT.

II.

Defendant County of Los Angeles' Motion

to Compel Responses to Defendant's Request for Production, Set One, is DENIED as MOOT.

III.

Defendant County of Los Angeles' Motion

to Compel Responses to Defendant's Special Interrogatories, Set One, is DENIED as MOOT.

IV.

Defendant is awarded reduced sanctions in the amount of \$750.00 in total.

Defendant to give notice.

Background

This is a civil rights action

regarding an incident that occurred on June 22, 2025. On April 25, 2024, Plaintiff Jesus Cerda ("Plaintiff") filed this action against Defendants Los Angeles County, Taylor May, and Does 1 to 10. The gravamen of the Complaint is that Defendant Taylor May, acting under employment as a deputy sheriff, attempted to pull over Plaintiff while driving. During the chase, Plaintiff's vehicle

collided with Defendant May's vehicle. As Plaintiff was reversing, Defendant May shot at Plaintiff multiple times, resulting in significant injuries. The Complaint alleges the following causes of action: 1) Negligence, 2) Battery, 3) Violation of Civil Code 52.1 (Tom Bane Act), and 4) Ralph Act (Civil Code 51.7).

The following motions filed by Defendant County of Los Angeles ("Defendant") are on calendar:

- Motion
to Deem Responses to Defendant's Requests for Admission, Set One, Admitted

- Motion
to Compel Responses to Defendant's Request for Production, Set One

- Motion
to Compel Responses to Defendant's Special Interrogatories, Set One

Legal Standards

Where there has been no timely response to a request for admission under Code of Civil Procedure section 2033.010, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code of Civ. Proc., § 2033.280, subd. (b).)

If a party fails to timely respond to demand for inspection, the party to whom the request is directed waives any objection, including one based on privilege or on the protection for work product. (Code Civ. Proc., § 2031.300, subd. (a).) The party who propounded the discovery request may bring a motion to compel responses to the interrogatories. (Code Civ. Proc., § 2031.300, subd. (b).)

If a party fails to timely respond to interrogatories, the party to whom the request is directed waives any right to exercise the option to produce writings under Code Civ. Proc., § 2030.230, and waives any objection, including one based on privilege or on the protection for work product. (Code Civ. Proc., § 2030.290, subd. (a).) The party who propounded the discovery request may bring a motion to compel responses to the interrogatories. (Code Civ. Proc., § 2030.290, subd. (b).)

Discussion

The Court summarizes the relevant procedural history as follows:

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April 13, 2026: Defendant served Requests for Admission, Set One, Requests for Production, Set One, and Special Interrogatories, Set One, on Plaintiff. (Nguyen Decls., ¶ 4, Exh. A.) Defendant granted Plaintiff a three-week extension, where the responses were due on June 5, 2026. (Nguyen Decls., ¶ 5, Exh. B.)

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June 5, 2026: Plaintiff served unverified responses to Defendant, containing objections (hereinafter, "Initial Responses"). (Nguyen Decls., ¶ 6, Exh. C.)

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June 16, 2026: Defendant sent a meet and confer correspondence regarding the Initial Responses (Nguyen Decls., ¶ 7, Exh. D.)

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June 22, 2026: Plaintiff attempted to contact the client regarding the discovery between June 4 to June 22, 2026. (Prado Decls., ¶ 4.) The parties met and conferred, wherein Defendant granted Plaintiff an extension to provide further responses and verifications by July 17, 2026. Plaintiff confirmed. (Nguyen Decls., ¶¶ 8-10, Exhs. E-G; Prado Decls., ¶ 5.)

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June 26, 2026: Plaintiff's counsel called Defense counsel to inform him there were issues contacting the client due to his medical condition, and that they would need time to arrange an in person meeting with the client to collect discovery responses. (Prado Decls., ¶¶ 7-8.)

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July 17, 2026: Plaintiff requested another extension, but Defendant declined, asserting that there was no legitimate reason for an extension. (Nguyen Decls., ¶¶ 11-12, Exhs. H-I; Prado Decls., ¶

12.) The same day, Plaintiff served unverified further responses (hereinafter, "Further Responses"). (Nguyen Decls., ¶ 13, Exh. J.)

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July 23, 2026: Defendant sent Plaintiff a correspondence again requesting Plaintiff to provide further responses and verifications. (Nguyen Decls., ¶ 14, Exh. K.)

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July 30, 2026: Defendant again requested that Plaintiff provide verifications, and Plaintiff agreed (Nguyen Decls., ¶¶ 15-16, Exhs. L-M.)

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August 3, 2026: Defendant filed these Motions.

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August 3 and 4, 2026: Plaintiff's counsel had met with the client and informed Defense counsel that Plaintiff would be providing further responses by August 7, 2026. (Prado Decls., ¶ 14, Exh. 3.) Plaintiff provided verifications for the Initial Responses and the Further Responses. (Prado Decls., ¶¶ 15-16, Exhs. 4-5.)

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August 7, 2026: Plaintiff provided a second set of further responses (hereinafter, "Second Set of Further Responses"). (Prado Decls., ¶ 17, Exhs. 6-8.)

Defendant argues that, as of date, Plaintiff has failed to provide verified responses in compliance with the Code. (Nguyen Decls., ¶ 17.) Defendant asserts that unverified responses are tantamount to no response at all. Defendant thus moves to deem the Requests for Admissions, Set One, admitted, and to compel responses to the Requests for Production, Set One, and Special Interrogatories, Set One. Defendant requests \$7,800.00 in sanctions for four discovery motions (including a Motion to Compel Responses to Form Interrogatories, Set One, set for hearing on October 6, 2026). (Nguyen Decls., ¶ 18.)

In opposition, Plaintiff asserts that the issues in these

Motions are now moot where verifications to the responses were provided. Plaintiff has responded as completely as possible to the requests. Plaintiff asserts that Defendant has failed to meet and confer in good faith. Plaintiff requests sanctions to oppose the three instant Motions and attend the hearings. The Court notes that each opposition requests a different amount of sanctions ranging from \$2,200.00 to \$5,200.00.

In reply, Defendant asserts that “the sole remaining issue before the Court is not whether Defendant is entitled to its reasonable attorneys’ fees and costs, but how much it is entitled to for having been forced to file its [Motions].” (Reply, 2:6-8.) Defendant highlights that Plaintiff provided verified responses that substantially complied with Code only after Defendant filed this Motion on August 3, 2026. (Suppl. Nguyen Decls. ¶ 10.) Defendant asserts that Plaintiff’s most recent extension request was unsupported by any evidence or specific explanation of Plaintiff’s medical condition. (Suppl. Nguyen Decls. ¶ 4, Exh. A.) Defendant notes that Plaintiff’s opposition fails to explain why Plaintiff delayed in contacting the client until June 4, 2026 when the discovery was propounded on April 13, 2026.

The Court initially notes that no meet and confer is required for motion to compel initial responses.

The Court finds that the substantive issues in these Motions are moot, provided that Plaintiff served verifications as to the Initial Responses and the Further Responses on August 4, 2026, as well as the Second Set of Further Responses on August 7, 2026.

Accordingly, Defendant’s Motion to Deem Requests for Admission, Set One, Admitted, Motion to Compel Responses to Defendant’s Request for Production, Set One, and Motion to Compel Responses to Defendant’s Special Interrogatories, Set One, are DENIED as MOOT.

Sanctions

If a motion to compel response is filed, the court “shall” impose a monetary sanction against the losing party unless it finds that party made or opposed the motion “with substantial justification” or other reasons make the sanction “unjust.” (Code Civ. Proc., §§ 2031.300, subd. (c) [requests for production], 2030.290, subd. (c) [interrogatories].)

"It is mandatory that the court impose a monetary sanction.

. .on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (2)(c).)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though. . .the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, Rule 3.1348(a).)

As conceded by the parties, the only issue remaining is sanctions. The Court finds that both parties met and conferred in good faith even where no meet and confer requirement was required. Defendant granted two extensions to Plaintiff. The Court finds that it was reasonable for Defendant to decline a third extension, where Plaintiff's counsel still was unable to provide Plaintiff's medical documentation regarding his mental capacity. The Court finds that Defendant is entitled to compensation for the time spent filing these motions to compel verifications and supplemental responses to the discovery requests.

However, the Court finds that the sanctions amount requested is exorbitant considering the simplicity of the issues and that each Motion is essentially identical.

Thus, Defendant is awarded reduced sanctions in the amount of \$750.00 in total for all three Motions.